

**FOR WANT OF EVIDENCE** Surinder Koli walks free after the Supreme Court struck down his final remaining conviction in the Nithari killings, Nov. 12. He was sentenced to death in 13 trials for raping, killing and dismembering children and women in Noida in 2005-06



# SHAMEFUL CONVICTION RATES

## ACQUITTALS IN SENSATIONAL CASES HIGHLIGHT A CRIMINAL JUSTICE SYSTEM BUCKLING UNDER STRUCTURAL FAILURES

**ON a dark November evening, a thin, greying man stepped out of Luksar Jail in Greater Noida.** Masked and clutching a small cloth bag, he walked into a world that had once demanded his death. This was Surinder Koli—long cast as a 'monster' and a 'man-eater'. For nearly two decades, he remained imprisoned for the 2006 Nithari killings, a case that horrified the country after skeletal remains of children and women surfaced in a drain behind the Noida bungalow of businessman Moninder Singh Pandher, Koli's employer. Allegations of serial murder, necrophilia and cannibalism fuelled a media frenzy, and police charged both men with luring, raping, killing and dismembering at least 16 victims.

Between 2009 and 2017, Koli was convicted in 13 separate trials and sentenced to death each time; Pandher received two death sentences. But the foundation of the case gradually crumbled. In October 2023, the Allahabad High Court acquitted Koli in 12 cases and Pandher in both of his, calling the investigation "botched-up", "casual" and "perfunctory". On November 11 this year, the Supreme Court struck down Koli's final remaining conviction, reiterating that "suspicion, however grave, cannot substitute proof". With that, the Nithari case collapsed.

Koli's release has reopened an uncomfortable truth: India's most sensational criminal cases are increasingly falling apart under judicial scrutiny. On July 21, the Bombay High Court overturned the convictions of 12 men in the 2006 Mumbai serial train blasts. Five had been on death row. The court held that the prosecution had "utterly failed" to prove the case. Ten days later, a special court acquitted